OLUTION MEPC.397(83) (adopted on 11 April 2025)
AMENDMENTS TO THE TECHNICAL CODE ON CONTROL OF EMISSION
OF NITROGEN OXIDES FROM MARINE DIESEL ENGINES (NOx TECHNICAL CODE 2008)
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SOURCE: MEPC.398(83).pdf
RESOLUTION MEPC.398(83) (adopted on 11 April 2025)
AMENDMENTS TO THE TECHNICAL CODE ON CONTROL OF EMISSION
OF NITROGEN OXIDES FROM MARINE DIESEL ENGINES (NOx TECHNICAL CODE 2008)RESOLUTION MEPC.398(83)
(adopted on 11 April 2025)
AMENDMENTS TO THE TECHNICAL CODE ON CONTROL OF EMISSION
OF NITROGEN OXIDES FROM MARINE DIESEL ENGINES
(NOx TECHNICAL CODE 2008)
(Certification of an engine subject to substantial modification or being certified to a
Tier to which the engine was not certified at the time of its installation)
THE MARINE ENVIRONMENT PROTECTION COMMITTEE
RECALLING Article 38(a) of the Convention on the International Maritime Organization
concerning the functions of the Marine Environment Protection Committee conferred upon it
by international conventions for the prevention and control of marine pollution from ships,
RECALLING ALSO article 16 of the International Convention for the Prevention of Pollution
from Ships, 1973, as modified by the Protocols of 1978 and 1997 relating thereto (MARPOL),
which specifies the amendment procedure and confers upon the appropriate body of
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from Ships, 1973, as modified by the Protocols of 1978 and 1997 relating thereto (MARPOL),
which specifies the amendment procedure and confers upon the appropriate body of
the Organization the function of considering amendments thereto for adoption by the Parties,
RECALLING FURTHER regulation 13 of MARPOL Annex VI, which makes the Technical Code
on Control of Emission of Nitrogen Oxides from Marine Diesel Engines (hereafter "NO x
Technical Code 2008") mandatory under that Annex,
HAVING CONSIDERED, at its eighty -third session, draft amendments to the NOx Technical
Code 2008 concerning the certification of an engine subject to substantial modification or bein
g
certified to a Tier to which the engine was not certified at the time of its installation , as
appropriate, approved at its eighty -second session and duly circulated in accordance with
article 16(2)(a) of MARPOL,
1 ADOPTS, in accordance with article 16(2)(d) of MARPOL, amendments to the NO x
Technical Code 2008, the text of which is set out in the annex to the present resolution;
2 DETERMINES, in accordance with article 16(2)(f)(ii) and (iii) of MARPOL, that the
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Technical Code 2008, the text of which is set out in the annex to the present resolution;
2 DETERMINES, in accordance with article 16(2)(f)(ii) and (iii) of MARPOL, that the
amendments shall be deemed to have been accepted on 1 March 2026 unless prior to that date
not less than one third of the Parties or Parties the combined merchant fleets of which
constitute not less than 50% of the gross tonnage of the world's merchant fleet have
communicated to the Organization their objection to the amendments;
3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL,
the said amendments shall enter into force on 1 September 2026 upon their acceptance in
accordance with paragraph 2 above;
4 ALSO INVITES the Parties to consider the early application of the amendments to the
NOx Technical Code 2008 concerning the certification of an engine subject to substantial
modification or being certified to a Tier to which the engine was not certified at the time of
its installation;
5 REQUESTS the Secretary-General, for the purposes of article 16(2)(e) of MARPOL,
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modification or being certified to a Tier to which the engine was not certified at the time of
its installation;
5 REQUESTS the Secretary-General, for the purposes of article 16(2)(e) of MARPOL,
to transmit certified copies of the present resolution and the text of the amendments contained
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